RP-2025-98960
03/19/2025 ER $53.00

SUPPLEMENTAL AMENDMENT TO THE DECLARATION OF COVENANTS, CONDITIONS, AND RESTRICTIONS FOR MASON WOODS

(SECTION 8)

RP-2025-98960

After Recording, Return To:
Lisa L. Gambrell
Isabella L. Vickers
Roberts Markel Weinberg Butler Hailey PC
2800 Post Oak Boulevard, 57th Floor
Houston, Texas 77056

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SUPPLEMENTAL AMENDMENT TO THE DECLARATION OF COVENANTS, CONDITIONS, AND RESTRICTIONS FOR MASON WOODS

SECTION 8

STATE OF TEXAS §
§
COUNTY OF HARRIS §

This Supplemental Amendment to the Declaration of Covenants, Conditions, and Restrictions for Mason Woods, Section 8 (this "***Supplemental Amendment***") is made by TPHTM 529, LLC, a Delaware limited liability company ("***Declarant***").

RECITALS:

Declarant filed the Declaration of Covenants, Conditions, and Restrictions for Mason Woods in the Official Public Records of Harris County, Texas under Clerk's File No. RP-2022-378389, as same has been or may be amended or supplemented from time to time (the "***Declaration***").

Pursuant to Article III of the Declaration, Declarant reserved the exclusive right to annex additional property into Mason Woods and to subject the additional property to the Declaration and to the jurisdiction of Mason Woods Community Association, Inc., a Texas nonprofit corporation (the "***Association***").

Pursuant to the terms of Article III of the Declaration, Declarant may subject additional property to supplemental restrictions that apply only to the real property being annexed and may create exceptions to, or otherwise modify, the terms of the Declaration in order to reflect the different or unique character and intended use of such annexed real property.

Declarant is the owner of certain real property, as shown on the map or plat for Grand Mason Sec 8, recorded under Clerk's File Number RP-2025-11915 in the Official Public Records of Harris County, Texas ("***Section 8***").

Reference is made to the Declaration for all purposes, and the capitalized terms used in this Supplemental Amendment have the meanings set forth in the Declaration, unless otherwise specified in this Supplemental Amendment.

SUPPLEMENTAL AMENDMENT:

Pursuant to the powers retained by Declarant in the Declaration, Declarant annexes Section 8 into Mason Woods. Section 8 carries with it all the rights, privileges, and obligations granted to the Property initially encumbered by the Declaration, including, but not limited to, the right to be annexed, and is annexed into the body of the Property subject to the Declaration and submitted to the jurisdiction of the Association. Section 8 will be held, transferred, sold, conveyed, used, and

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occupied subject to the covenants, Assessments, restrictions, easements, charges, and liens set forth in the Dedicatory Instruments, including, but not limited to, the Declaration and this Supplemental Amendment.

Pursuant to the powers retained by Declarant in the Declaration, Declarant designates, declares, adopts, establishes, and imposes the following supplemental restrictions for Section 8:

1. Square Footage Requirements:

All Dwellings within Section 8 must contain a minimum of 1,200 square feet of living area. Living area does not include porches, garages, or non-air conditioned areas.

2. Notices:

Owners and Occupants of Lots within Section 8 are advised that various conditions exist or may exist within or in proximity to the Property, including Section 8, which include the following (collectively, the "***Conditions***"):

a. A number of manmade, natural, and environmentally sensitive areas may exist within or in proximity to the Property, including Section 8, and these areas may serve as habitats for a variety of native plants and wildlife, including, without limitation, insects, alligators, bobcats, coyotes, wild hogs, venomous and non-venomous snakes and other reptiles, deer, armadillos, and other animals, some of which may pose hazards to persons or pets coming in contact with them.

b. Reserve areas, including the following restricted reserves located within Section 8: Restricted Reserves A, B, D, E, F, G, H, I, J, K, restricted in their use to landscape and open space purposes; and Restricted Reserve C, restricted in its use to a lift station.

c. Several lakes or detention reserves exist either in proximity to or within the Property, including a 30.49-acre temporary detention easement, more particularly described under Harris County Clerk's File No. RP-2021-246961, outside of the platted area. Owners and Occupants are advised that one or more fountains have been or may be installed in the lakes or detention reserves.

d. Adjacent land that is not owned by the Association or Declarant exists in proximity to Section 8, outside of the platted area.

e. A 50-foot wide Trunkline Gas Co. easement, more particularly described by that instrument recorded under Clerk's File Number 20150501964 in the Harris County Deed Records, exists along the westerly perimeter of Section 8, outside the platted area.

f. A 50-foot SiEnergy, LP., and Trunkline Gas Company Surface Site Easement, more particularly described by those instruments recorded under Clerk's File Numbers RP-2022-552872 and RP-2022-552876 in the Official Public Records of Harris County, Texas, exists within Restricted Reserve B.

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Owners are advised that there may be potentially dangerous conditions that exist within or near portions of the Property, including Section 8, such as, by way of illustration and not limitation, the following: holes, streams, roots, stumps, ditches, gullies, flooding, standing water, murky water, erosion, instability of natural topography, insects, reptiles, and animals. It is possible for some or all of these conditions to extend into the Lots within Section 8. Each Owner and Occupant of any Lot, and every person entering Section 8 (i) acknowledges that there are plants and wildlife that are indigenous to the area and are not restrained or restricted in their movements within or throughout the Property; and (ii) assumes all risk of personal injury arising from the presence of such plants and wildlife within the Property. Neither the Association, Declarant, any successor declarant, nor the members, partners, affiliates, officers, directors, agents, or employees of any of the foregoing, has any duty to take action to control, remove, or eradicate any plant or wildlife in the Property, nor are they liable for any injury resulting from the presence, movement, or propagation of any plant or wildlife within or throughout the Property.

EACH OWNER OF A LOT WITHIN SECTION 8 AGREES TO DEFEND (IMMEDIATELY UPON DEMAND), INDEMNIFY, AND HOLD HARMLESS DECLARANT AND THE ASSOCIATION, AS WELL AS THEIR RESPECTIVE PAST, PRESENT, AND FUTURE DIRECTORS, OFFICERS, MEMBERS (OF A FOR-PROFIT ENTITY), EMPLOYEES, AGENTS, AND AFFILIATED ENTITIES (THE "*INDEMNIFIED PARTIES*") FROM ANY AND ALL CLAIMS BROUGHT BY, THROUGH, OR UNDER THE OWNER OR ANY THIRD PARTY ARISING FROM THE CONDITIONS. THE OWNER'S OBLIGATION TO DEFEND AND INDEMNIFY THE INDEMNIFIED PARTIES IS OWED EVEN FOR CLAIMS ALLEGED OR PROVEN TO BE CAUSED, IN WHOLE OR IN PART, BY THE NEGLIGENCE OF THE INDEMNIFIED PARTIES.

Each Owner and Occupant of a Lot within Section 8 acknowledges and understands that the Association, its Board, and Declarant are not insurers and that each Owner and Occupant assumes all risks for loss or damage to persons and property. Each Owner and Occupant of a Lot within Section 8 further acknowledges that the Association, its directors, officers, managers, agents, and employees, Declarant, and any successor declarant have made no representations or warranties, nor has any Owner or Occupant relied upon any representations or warranties, expressed or implied, relative to water levels, water clarity, safety, any use, or any future change in use of the Conditions. Declarant and the Association are not responsible for any loss, damage, or injury to any person or property arising out of the authorized or unauthorized use of the Conditions within the Property.

Owners of Lots within Section 8 grant an easement to Declarant and the Association, including their respective designees, for incidental noise, water, lighting, odors, parking, overspray from fountains, visibility, and traffic that may occur due to the Conditions. There is further reserved for Declarant, the Association, and their designees an easement to the extent necessary over portions of Lots located in proximity to the Conditions for water and overspray of products used to control vegetation within the Conditions.

Each Owner and Occupant of a Lot that is in proximity to the Conditions must take care and may not permit any trash, fertilizers, chemicals, petroleum products, environmental hazards,

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or any other foreign matters to infiltrate the Conditions. **ANY OWNER OR OCCUPANT PERMITTING OR CAUSING SUCH INFILTRATION IS RESPONSIBLE FOR ALL COSTS OF CLEAN UP AND REMEDIATION NECESSARY TO RESTORE THE CONDITIONS TO THEIR CONDITION IMMEDIATELY PRIOR TO ANY SUCH INFILTRATION.**

3. <u>Fencing</u>

Community Fences have been or will be constructed on or adjacent to those portions of the following Lots within Section 8:

a. The rear Lot lines of Lots 4 – 9, Block 1, common to Restricted Reserve A.

Such Lots are considered Adjacent Lots and are subject to the provisions in the Declaration pertaining to Community Fences (as those terms are defined in the Declaration). Declarant, the Association, or the Community Fence owner, as applicable, have an easement on the Adjacent Lots for the installation, maintenance, repair, or replacement of the Community Fences, as more particularly described in the Declaration.

Save and except the fencing noted above, all other fencing located upon the Lots within Section 8 must be installed, maintained, repaired, and replaced in accordance with the Dedicatory Instruments.

This Supplemental Amendment may only be amended as provided in Article XV of the Declaration.

[SIGNATURE PAGES FOLLOW]

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IN WITNESS WHEREOF, this Supplemental Amendment to the Declaration of Covenants, Conditions, and Restrictions for Mason Woods, Section 8 is executed as of the 18 day of March, 2025.

DECLARANT:

TPHTM 529, LLC, a Delaware limited liability company

By: _____
Print Name: Collins Pier
Print Title: Vice president

STATE OF TEXAS §
§
COUNTY OF Harris §

This instrument was acknowledged before me on this 18 day of March, 2025, by Collins Pier, the Vice president of TPHTM 529, LLC, a Delaware limited liability company, on behalf of said entity.

Lindsey Kucera
Notary Public - State of Texas

LINDSEY KUCERA
Notary ID #129614853
My Commission Expires
October 9, 2026

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LIENHOLDER CONSENT AND SUBORDINATION

U.S. BANK NATIONAL ASSOCIATION, a national banking association, being the sole beneficiary of a purchase money mortgage lien (as set forth in the Declaration) and other liens, assignments and security interests encumbering all or a portion of the Property consents to the terms and provisions of this Supplemental Amendment to which this Lienholder Consent and Subordination is attached and acknowledges that the execution thereof does not constitute a default under the lien document or any other document executed in connection with or as security for the indebtedness above described, and subordinates the liens of the lien document and any other liens or security instruments securing said indebtedness to said Supplemental Amendment (and the covenants, conditions and restrictions in the Supplemental Amendment), and acknowledges and agrees that a foreclosure of said liens or security interests does not extinguish this Supplemental Amendment (or the covenants, conditions and restrictions in the Supplemental Amendment). No warranties of title are made by lienholder, lienholder's joinder to this Supplemental Amendment being solely limited to such consent and subordination.

SIGNED AND EXECUTED THIS on March 18th, 2025.

U.S. BANK NATIONAL ASSOCIATION,
a national banking association

By: _____
Print Name: David Prowse
Title: Senior Vice President

STATE OF TEXAS §
COUNTY OF _____ §

This instrument was acknowledged before me on the _____ day of _____ 2025, by _____, the _____ of U.S. BANK NATIONAL ASSOCIATION, a national banking association, on behalf of said entity.

Please See attached

Notary Public – State of Texas

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NOTARY ACKNOWLEDGMENT

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

STATE OF CALIFORNIA

COUNTY OF ORANGE

On March 18, 2025, before me, Aja Saavedra , a Notary Public, personally appeared David Prowse, who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature

(Seal)

AJA SAAVEDRA
Notary Public - California
Orange County
Commission # 2488710
My Comm. Expires Apr 30, 2028

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e-Filed & e-Recorded in the

Official Public Records of

HARRIS COUNTY

TENESHIA HUDSPETH

COUNTY CLERK

Fees $53.00

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RECORDERS MEMORANDUM
This instrument was received and recorded electronically and any blackouts, additions or changes were present at the time the instrument was filed and recorded.

Any provision herein which restricts the sale, rental, or use of the described real property because of color or race is invalid and unenforceable under federal law.
THE STATE OF TEXAS
COUNTY OF HARRIS
I hereby certify that this instrument was FILED in File Number Sequence on the date and at the time stamped hereon by me; and was duly RECORDED in the Official Public Records of Real Property of Harris County, Texas.

COUNTY CLERK
HARRIS COUNTY, TEXAS